

scope of common-law immunities in either § 1983² or § 1988.³ We, therefore, have looked to the common law to determine when absolute immunity should be available. A review of the common law reveals nothing that suggests—much less requires—the distinction the Court draws today between suits for prospective relief (with the attendant liability for costs and attorney's fees) and suits for damages.

The doctrine of judicial immunity is one of the earliest products of the English common law.⁴ It was established to protect the finality of judgments from continual collateral attack in courts of competing jurisdiction⁵ and to protect

lees had not been threatened with prosecution and held that the lower court had lacked Art. III jurisdiction. The suit against judicial officials in *O'Shea v. Littleton*, 414 U. S. 488 (1974), was dismissed on the same ground. Although the lower court in *Gerstein v. Pugh*, 420 U. S. 103 (1975), had ordered injunctive relief against judicial officers, only the state prosecutor sought review. Thus, the Court did not consider the propriety of the relief awarded against the judicial officers.

² See *Pierson v. Ray*, 386 U. S. 547, 554–555 (1967).

³ In *Consumers Union*, *supra*, at 738, the Court observed that “[t]here is no . . . indication in the legislative history of the Act to suggest that Congress intended to permit an award of attorney's fees to be premised on acts for which defendants would enjoy absolute legislative immunity.” Similarly, there is no indication in the legislative history of the Act to suggest that Congress intended to diminish the scope of judicial immunity.

⁴ The doctrine was recognized as early as the reign of Edward III (1327–1377). See 6 W. Holdsworth, *A History of English Law* 234–235 (2d ed. 1937).

⁵ During the early medieval period, there was no such thing as an appeal from court to court. Judges were not immune from suits attacking their judicial acts, and the common procedure for challenging a judicial ruling was to file a complaint of “false judgment” against the judge. 1 W. Holdsworth, *A History of English Law* 213–214 (7th ed. 1956); 6 Holdsworth, at 235. At this time, the King's Bench was the central common-law court, and it vied for jurisdiction with the local feudal courts and the ecclesiastical courts. To protect the finality and authoritativeness of its decisions from collateral attack in these competing courts, the King's Bench borrowed the idea of appellate procedure from the ecclesiastical